

Software Terms and Conditions

For the Barnwright 3D designer

These terms are the agreement between **Barnwright Software** (barnwrightsoftware.com) and the business named on the **Barnwright Sign-Up Form** ("you"). They apply together with your signed Sign-Up Form, which lists what you get and any fees. "Barnwright", "we" and "us" mean Barnwright Software, the provider named on your Sign-Up Form. If the Sign-Up Form and these terms say different things, the Sign-Up Form wins.

1. What you get

1.1 Barnwright provides one product: the **Barnwright 3D designer**. It includes:

- (a) your **3D designer**, where your customers pick a building, size, colors, doors, windows and options, see a price, and send you a quote request;
- (b) your **Dealer Center**, where you set your price list, styles, sizes and options once for every lot, add your lots and your team, and keep your customers, quotes, follow-ups and orders; and
- (c) your web address, hosting, updates and fixes for as long as this agreement is in place.

1.2 The 3D designer stands on its own. It works alongside the software you already use, such as your website, your accounting and your rent-to-own company, and does not replace it. You keep using your own software for contracts, payments, inventory and delivery.

1.3 We may improve, change or replace features over time. We will not take away a main feature you use without telling you at least 30 days ahead.

1.4 Lots. Your monthly fee includes your first lot. Each lot after the first has a one-time lot fee (section 3) and adds nothing to your monthly fee. To open another lot later, ask us: we add it to your plan once its lot fee is paid.

1.5 Your web address. Your 3D designer and Dealer Center are at a web address under barnwrightsoftware.com, such as yourbusiness.barnwrightsoftware.com, which we choose with you. Barnwright owns barnwrightsoftware.com and the addresses under it. You may use yours while this agreement is in place, and you may also show your 3D designer on your own websites.

2. Setting up your software

2.1 We set up your 3D designer at no charge: your price list, your styles and sizes, your colors and logo, your lots, your web address, and the code for your website.

2.2 You agree to send us, on time and correct, what we need to set you up, such as your answers to the **Barnwright Setup Questions**: your prices, the styles and sizes you sell and how you build them, your colors, your logo, your lots, your contact details, your website addresses and where quote requests should go.

2.3 Before your 3D designer goes live, we show you your buildings and prices. You check them and tell us they are right. You are responsible for the prices and choices you approve.

3. Fees and payment

3.1 There is no setup fee.

3.2 Your **monthly fee**, shown on your Sign-Up Form (\$250 a month unless the form says otherwise), starts on your **go-live date**: the day we tell you in writing (an email is enough) that your software is finished and ready to use. It includes your first lot, and it is the same for any number of lots.

3.3 The monthly fee is charged ahead of each month by the payment method on your Sign-Up Form, for example a card or bank payment through our payment processor, or an invoice.

- 3.4 Each lot after the first has a **one-time lot fee of \$250**, shown on your Sign-Up Form. You pay it before we open that lot. A lot fee is not refundable once the lot is open.
- 3.5 If a payment fails, we try again and tell you. If a fee is still unpaid 15 days after we tell you, we may switch your account off as described in section 9 until it is paid.
- 3.6 Fees do not include sales tax or other taxes. You pay any that apply.
- 3.7 We may change the fees by telling you at least 30 days before the change. A change never charges again for a lot you already paid for. If you don't agree, you may end this agreement before the change takes effect.

4. How long this agreement lasts

- 4.1 This agreement starts when both of us sign the Sign-Up Form. It continues month to month until you or we end it.
- 4.2 Either of us may end it for any reason by giving the other 30 days' written notice. An email to the address on the Sign-Up Form is written notice.
- 4.3 We may end it sooner, or switch your account off, if a fee is not paid (section 3.5), if you seriously break these terms and don't fix it within 10 days after we tell you, or if the software is used against the law.

5. Your account and your team

- 5.1 Your owner controls your account: who is on your team, which lots each person sees, and your settings. Your owner is responsible for the people they add.
- 5.2 Keep logins private. Each person uses their own login. Take people off your team when they leave.
- 5.3 Tell us right away if you think someone got into your account who shouldn't have.

6. Your prices, quotes and buildings

- 6.1 You set your prices, options, rent-to-own terms and the words your customers see. Quotes the software makes use your price list. You are responsible for checking that your price list is correct and for every price you give a customer.
- 6.2 A price shown in the 3D designer is an estimate until you confirm the order with your customer. Tell your customers so, for example in the line under the price.
- 6.3 The 3D pictures and floor plans are drawings to help your customers choose. They are not construction drawings, engineered plans or permit documents. You are responsible for how your buildings are built and delivered, and for building codes, permits, wind and engineering requirements, and the delivery site.
- 6.4 Rent-to-own and other monthly figures are estimates worked out from the numbers you give us. Barnwright is not a lender or a rent-to-own company. Your rent-to-own and financing contracts, the disclosures they need and the laws that apply to them are your responsibility.

7. Texting, email and your customers

- 7.1 The software can ask your customers for permission to text them, in the words you choose, and shows their phone number and email to your team. You are responsible for following the laws on calling, texting and emailing customers, including getting and keeping their permission and honoring requests to stop (such as a reply of STOP), and including the Telephone Consumer Protection Act, the CAN-SPAM Act and the Florida Telephone Solicitation Act where they apply.
- 7.2 You are responsible for what you and your team send to customers, and for any texting or email service you connect.

8. Your data

- 8.1 Your data belongs to you: your customers, quotes, orders, notes, price list, logo and settings.

- 8.2** We use your data only to run, support, back up and improve the software for you, and when the law requires it. We do not sell your data, and we do not use your customers' details to market to them.
- 8.3** You can look at and download your data at any time, including while your account is switched off.
- 8.4** You confirm that you have the right to give us the data you put in, including your customers' details.
- 8.5** After this agreement ends we keep your data for 30 days so you can download it. After that we may delete it. Copies in our backups are deleted as those backups are replaced.
- 8.6** We use reasonable security to protect your data. If we learn that someone got into your data without permission, we will tell you without delay and help you with what the law requires.

9. Check-ins, switching off and read-only

- 9.1** Your software checks in with Barnwright's control room to confirm that your account is on and how many lots you may have open.
- 9.2** Your account is switched off when we switch it off under section 3.5 or 4.3, or when this agreement ends. It also stops taking changes if it cannot check in for 7 days in a row.
- 9.3** While it is switched off, changes can't be saved, your 3D designer links show a short message with your lot's phone number instead of the designer, and quote requests can't be sent. You and your team can still look at and download everything, and taking a person off your team still works.
- 9.4** When the reason is fixed, for example the fee is paid, we switch your account back on. Nothing is deleted while an account is switched off.
- 9.5** You agree not to try to get around the check-ins, the lot limit or the switch.

10. Help from Barnwright

- 10.1** Barnwright can't look into your Dealer Center unless your owner turns on **Help from Barnwright** in Settings, for 1 to 24 hours, with a reason. It turns off by itself when the time is up, and your owner can turn it off sooner.
- 10.2** While it is on, we can run checks that show how your Dealer Center is running. Those checks don't show us your customers, prices or settings. Every visit is written in a log your owner can see.
- 10.3** Support is by the ways and at the hours shown on your Sign-Up Form.

11. Using the software the right way

You agree not to:

- (a) copy, sell, rent or share the software, or give your activation key to anyone else;
- (b) try to take the software apart or copy how it works;
- (c) put your 3D designer on websites you don't own or haven't told us about;
- (d) use it to send spam or to break any law;
- (e) put in anything that harms the software or other users; or
- (f) let anyone outside your team use your account.

12. Who owns what

- 12.1** Barnwright owns the software and everything we make for it, including the 3D models, drawings, designs and code, and improvements to them, even when they came from your ideas. You may use the software for your business while this agreement is in place. That right ends when the agreement ends.
- 12.2** You keep owning your business name, your logo and your own content. You let us use them to run your software, for example to show your name and logo in your 3D designer.
- 12.3** Your 3D designer shows a small "3D designer by Barnwright" line unless your Sign-Up Form includes white-label.

12.4 If you say yes on your Sign-Up Form, we may name your business as a Barnwright customer.

13. Other companies' services

The software runs on, or connects to, services run by other companies, such as web hosting, email delivery, payment processing, and any form or texting service you connect. Their terms apply to those services. We are not responsible for their outages or changes, but we will work to keep your software running if one of them has a problem.

14. Keeping things running

We work to keep the software running at all hours, but we can't promise it will never be down, slow or wrong. We may take it down briefly for updates, and we try to do that outside business hours. We fix problems we are responsible for as soon as we reasonably can.

15. Confidential information

Each of us keeps private the other's business information that isn't public: for you, your prices, customers and sales; for us, the software and our pricing. Each of us uses it only for this agreement and shares it only with people who need it for this agreement and keep it private too. This doesn't cover information that is already public, or that the law requires a party to share.

16. Warranty

16.1 We will provide the software with reasonable care and skill.

16.2 Apart from that, the software is provided "as is" and "as available". As far as the law allows, we make no other promises, including that it is fit for a particular purpose, that it will run without interruption or errors, or that it will bring you any number of sales.

17. Limits on responsibility

17.1 Neither of us is responsible to the other for lost profits, lost sales, lost data that could have been downloaded, or indirect or special damages, even if warned they could happen.

17.2 Our total responsibility for all claims under this agreement is limited to the fees you paid us in the 12 months before the claim.

17.3 These limits do not apply to fraud or intentional wrongdoing, to amounts you owe us, or to section 18.

18. Covering claims

18.1 You will defend and pay for claims by others that come from your prices, your buildings or their delivery, your contracts with your customers, rent-to-own or financing, your calls, texts or emails, or your breaking this agreement or the law.

18.2 We will defend and pay for claims by others that the software, as we provide it, breaks their copyright or patent. If that happens, we may change the software, get the right for you to keep using it, or end this agreement and refund fees you paid ahead for time not used.

18.3 The one asking to be covered must tell the other promptly and help with the defense.

19. Changes to these terms

We may update these terms. We will tell you at least 30 days before a change takes effect and put the new version and date at the top. If you don't agree, you may end this agreement before the change takes effect. Using the software after that date means you accept the change.

20. General

20.1 Florida law governs this agreement. Any lawsuit about it will be brought in the state or federal courts for Charlotte County, Florida, and both of us agree to those courts.

- 20.2** These terms and your signed Sign-Up Form are the whole agreement between us about the software. They replace earlier talks and proposals. If they say different things, the Sign-Up Form wins.
- 20.3** Notices are given by email to the addresses on the Sign-Up Form, or by mail. Keep your contact details up to date.
- 20.4** You may not transfer this agreement without our written permission, which we won't hold back unreasonably if you sell your business. We may transfer it to a company that takes over our business and these terms.
- 20.5** Neither of us is responsible for delays caused by things outside our reasonable control, such as storms, power or internet outages, or outages at other companies' services.
- 20.6** If any part of this agreement can't be enforced, the rest still applies. Not enforcing a part of it is not giving it up.
- 20.7** Electronic signatures, and signed copies sent by email, count as originals. The Sign-Up Form may be signed in separate copies.
- 20.8** Parts that by their nature should continue after the agreement ends, such as fees owed, your data, who owns what, confidential information, limits on responsibility and covering claims, keep applying.

You sign these terms by signing the Barnwright Sign-Up Form. Keep a copy of both.